DIVISION BENCH ITEM NO.102

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.26/ALD/2023 IN CA (CAA) No.22/ALD/2023
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st March, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**LOHIA CORP LIMITED WITH KANPUR PACKAGING MACHINES LTD.**
UNDER SECTION	**230/ 232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. S.K. Gupta with Sh. Ankit Kr. Singh, PCS(s) *: For Petitioner Companies*

Sh. Krishna Dev Vyas, Adv. *: For the ROC*

Sh. Gaurav Mahajan, Sr. S.C. with Sh. Niraj Kumar Singh, Adv. *: For the I.T. Deptt.*

Sh. Ajit Kumar Singh, AOL *: For the O.L. Alld/ RD (NR)*

ORDER

Ld. Counsels representing their respective parties are present.

1. This is a Second Motion Petition, in which the notices were issued to the Official Liquidator, RD (NR)/ ROC as well as to the Income Tax Department and the order was also issued at the notice stage of the Second Motion for making publications in the newspapers. The affidavit of compliance has been made enclosing the copies of the publications and subsequently, an affidavit *vide* diary no.478 dated 16.02.2024 is also filed saying about no objections received in response to the publications made.

-Sd- ***-Sd-***

2. The Ld. Authorized Representative for the Petitioner with respect to the report filed on behalf of the ROC/ RD (NR) states that there are no adverse observations, and therefore there was no counter require to be filed.

3. Ld. Assistant Official Liquidator states that since this is a Demerger Company, therefore the report of the OL is not required to be filed.

4. An affidavit of the concerned Income Tax Department has been filed *vide* affidavit dated 28.02.2024 and the advance copy of which was also supplied to the Ld. Authorized Representative for the Petitioner.

5. In response to the said report of the Income Tax Department, Ld. Authorized Representative for the Petitioner states that the response affidavit/ undertaking has been filed in terms of diary no.657 dated 13.03.2024. The same are taken on record.

6. Arguments heard. Order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

21st March, 2024

Kavya Prakash Srivastava
(Stenographer)